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Culture (OWC): [Lozi \(FQ09\)](#)

Region: Africa

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Section Title(S): IX · X

kutalungusha --to be able to classify affairs;

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kunyanyama --to be clever and of prompt decision;

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sishongololi --a judge who relates matters lengthily and correctly;

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 *muswanikisi* --a judge who has good reasoning power and is able to ask searching questions.

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Other words scorn poor reasoning:

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 *kuyungula* --to speak on matters without coming to the point;

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 *kunjongoloka* --to wander away from the subject when speaking;

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 *kubulela siweko* --to talk without understanding;

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muyauluki --a judge who speaks without touching on the important points at issue;

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siswasiwa --a person who gets entangled in words;

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siyambutuki --a talker at random.

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There are many other words of this kind, as well as common words for wisdom and stupidity, for sage and fool, and so on. The Lozi constantly use these to evaluate the skill of judges in investigating facts and in composing logical judgments. I have heard these evaluations applied to various judgments and judges: they witness that the logic of the judicial process is publicly recognized and striven for.

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Thus in cross-examination on the evidence, in extraction of the points in dispute, and in decision on the legal issues, the judges move by logic within a system of customary usage and social presumptions. The process is simply illustrated in 'The Case of the Cross-Cousin Adultery' from which I extract the implicit presumptions, and logical steps in *nawala's* (R42) judgment (p. 135):

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Gift Giving

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Kinship Regulation Of
Sex

Accused asserts plaintiff's wife is his cross-cousin to whom he made gifts because of this kinship, and says she is 'his sister' with whom he could not have intercourse. But he gave the gifts to her privately and not in public. Reasonable and upright men should give even their kinswomen gifts in public lest they be suspected of sexual designs, and if the woman is married should do so in the presence of her ■278 husband, or inform the husband. Hence it is probable that he gave her the gifts in private to seduce her or because he was her lover. Furthermore, though she is 'his sister' by Lozi reckoning, he is a Mbunda; and Mbunda marry cross-cousins and indeed favour cross-cousin marriage. Mbunda have joking relations with cross-cousins. If she is potentially his wife he can fornicate with her. The defence that he made presents to her because she was his kinswoman would have been valid had he made the gifts in her husband's presence. Indeed, in view of their potential sexual relationship a reasonable man would have taken especial care to do so. He did not, and therefore he surely regarded her as a mistress.

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